

SUPREME COURT OF THE STATE OF NEW YORK	)	<u>SUMMONS</u>
COUNTY OF BRONX	)	
-----X	)	Index #:
MARISOL LOPEZ.	)	
Plaintiff,	)	Plaintiff designates:
	)	Bronx County
-against-	)	as the place of trial
	)	
THE CITY OF NEW YORK, THE NEW YORK CITY	)	Basis of the venue is:
POLICE DEPARTMENT ("NYPD"), POLICE OFFICER	)	Plaintiff's home address
SUSAN ARIAS, POLICE OFFICER DANG NYUGEN,	)	
POLICE OFFICERS "JOHN DOE" # 1-5, individually and in	)	Plaintiff's address is:
Their Official Capacities (the name John Doe being fictitious, as	)	1007 Wilcox Avenue
their true names are presently unknown), POLICE OFFICERS	)	Bronx, New York 10465
"JANE DOE" # 1-5, individually and in their Official Capacities	)	
(the name Jane Doe being fictitious, as their true names are	)	
presently unknown), THE OFFICE OF DISTRICT	)	
ATTORNEY, BRONX COUNTY, Assistant District Attorney	)	
NATALE CORSI, individually and in his official capacity as an	)	
employee and/or attorney acting on behalf of THE OFFICE OF	)	
DISTRICT ATTORNEY, BRONX COUNTY, WILCOX	)	
RESTORATION CORP and LORI CUOMO, both	)	
individually and in her official capacity on behalf of WILCOX	)	
RESTORATION CORP.,	)	
Defendant(s).	)	
-----X	)	

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance upon the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant addresses:	Plaintiff's attorney:
THE CITY OF NEW YORK	EZRA B. GLASER AND ASSOICATES
c/o CORPORATION COUNSEL OF THE	Attorney for the Plaintiff
CITY OF NEW YORK	3201 Fort Hamilton Parkway, #1R
100 Church Street	Brooklyn, New York 11218
New York, New York 10007	Phone: (212) 385-9300
THE NEW YORK CITY POLICE	
DEPARTMENT c/o CORPORATION	

COUNSEL OF THE CITY OF NEW YORK

100 Church Street
New York, New York 10007

POLICE OFFICER SUSAN ARIAS
THE NEW YORK CITY POLICE
DEPARTMENT c/o 45th Precinct
2877 Barkley Avenue
Bronx, New York 10465

POLICE OFFICER DANG NYUGEN
THE NEW YORK CITY POLICE
DEPARTMENT c/o 45th Precinct
2877 Barkley Avenue
Bronx, New York 10465

POLICE OFFICERS "JOHN DOE" # 1-5
THE NEW YORK CITY POLICE
DEPARTMENT c/o 45th Precinct
2877 Barkley Avenue
Bronx, New York 10465

POLICE OFFICERS "JANE DOE" # 1-5
THE NEW YORK CITY POLICE
DEPARTMENT c/o 45th Precinct
2877 Barkley Avenue
Bronx, New York 10465

THE OFFICE OF DISTRICT ATTORNEY,
BRONX COUNTY
198 East 161 Street
Bronx, New York 10451

NATALE CORSI
THE OFFICE OF DISTRICT ATTORNEY,
BRONX COUNTY
198 East 161 Street
Bronx, New York 10451

WILCOX RESTORATION CORP.
648 Central Park Ave.,
Scarsdale, NY 10583

LORI CUOMO
(both individually and in his official capacity on
behalf of WILCOX RESTORATION CORP.)

910 Vincent Avenue Bronx, New York 10465	
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Dated: Brooklyn, New York
April 5, 2023

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

COMPLAINT

-----X
MARISOL LOPEZ.

Index #:

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT ("NYPD"), POLICE OFFICER
SUSAN ARIAS, POLICE OFFICER DANG NYUGEN,
POLICE OFFICERS "JOHN DOE" # 1-5, individually and in Their
Official Capacities (the name John Doe being fictitious, as their
true names are presently unknown), POLICE OFFICERS "JANE
DOE" # 1-5, individually and in their Official Capacities (the name
Jane Doe being fictitious, as their true names are presently
unknown), THE OFFICE OF DISTRICT ATTORNEY,
BRONX COUNTY, Assistant District Attorney NATALE
CORSI, individually and in his official capacity as an employee
and/or attorney acting on behalf of THE OFFICE OF DISTRICT
ATTORNEY, BRONX COUNTY, WILCOX
RESTORATION CORP. and LORI CUOMO, both
individually and in her official capacity on behalf of WILCOX
RESTORATION CORP.,

Defendant(s).
-----X

Plaintiff, **MARISOL LOPEZ**, by her attorneys, **EZRA B. GLASER AND ASSOCIATES, ESQ.**,
complaining of the defendants herein upon information and belief, respectfully shows to this Court,
and alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of her civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States. Plaintiff also brings this action for violation of her rights under New York State law.

PARTIES

2. On August 27, 2020, and at all times hereinafter mentioned, the Plaintiff, MARISOL LOPEZ, is and was a resident of the County of Bronx, City and State of New York.
3. Plaintiff is a Hispanic-American female and at all relevant times a resident of the County of Bronx, in the City and State of New York.
4. Defendant, the City of New York, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
5. Defendant, the City of New York, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, the City of New York.
6. That on August 27, 2020, and at all times hereinafter mentioned, the Defendants, SUSAN ARIAS and DANG NYUGEN, were Police Officers and/or employees of the NYPD 45th Precinct, a subdivision of the Defendant, THE NEW YORK CITY POLICE DEPARTMENT, under the auspices and/or authority of THE CITY OF NEW YORK, and, as such, were acting with the scope of their duties at the time of the acts complained herein.
7. At all times hereinafter mentioned, the individually named defendants P.O.'s "JOHN DOE" # 1-5 the name John Doe being fictitious, as their true names are presently unknown), were and still are individuals employed as police officers, detectives, agents and servants and/or employees of said department and were acting under the supervision of said department and according to their official duties.
8. At all times hereinafter mentioned, the individually named defendants P.O.s "JANE DOE"

- # 1-5 the name Jane Doe being fictitious, as their true names are presently unknown), were and still are individuals employed as police officers, detectives, agents and servants and/or employees of said department and were acting under the supervision of said department and according to their official duties.
9. That on August 27, 2020, and at all times hereinafter mentioned, the Defendant, THE OFFICE OF THE DISTRICT ATTORNEY, BRONX COUNTY, maintained, controlled, and existed as a duly-authorized public authority, authorized to perform all functions of a District Attorney's Office under the applicable sections of the New York State Law and the New York State Criminal Procedure Law, with prosecutors and/or investigators acting under the direction and supervision of the aforementioned prosecutor's office.
10. At all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.
11. Each and all of the acts of the defendants alleged herein were performed by said Defendants while acting within the scope of their employment by Defendant, City of New York.
12. That upon information and belief, on August 27, 2020, Defendant LORI CUOMO was and is a resident of the County of Bronx, City and State of New York. At all times hereinafter mentioned, Defendant LORI CUOMO is one of the persons claiming to be a landlord pertaining to the premises of 1007 Wilcox Avenue, Bronx, New York 10465, and is or was a principal, agent, servant and/or employee of WILCOX RESTORATION CORP., and the cause of the false arrest, malicious prosecution and abuse of process pertaining to the Plaintiff, MARISOL LOPEZ.

13. That on August 27, 2020, and at all times hereinafter mentioned, the Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
14. That on August 27, 2020, and at all times hereinafter mentioned, the Defendant, THE CITY OF NEW YORK, maintains, controls, and manages the Defendant, THE NEW YORK CITY POLICE DEPARTMENT, a duly authorized public authority, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.
15. That on August 27, 2020, and at all times hereinafter mentioned, the Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
16. That on August 27, 2020, and at all times hereinafter mentioned, the Plaintiff, MARISOL LOPEZ, was an inmate detained by THE NEW YORK CITY POLICE DEPARTMENT in the County of New York, City of New York on the date herein alleged.
17. That on August 27, 2020, and upon information and belief, the Plaintiff, MARISOL LOPEZ, was in her home at 1007 Wilcox Avenue, Bronx, New York 10465 when persons claiming to be landlords of the premises, Defendant LORI CUOMO, broke one of the doors of the building where Plaintiff MARISOL LOPEZ resides at.
18. Defendant, LORI CUOMO, thereafter, falsely alleged to be standing on a ladder trying to remove one of the cameras from the building when Plaintiff, MARISOL LOPEZ, emerged from the side of a window of her building trying to push the ladder with one hand while holding a large kitchen knife with the other hand. Among the false allegations Defendant,

LORI CUOMO continues to say that Plaintiff was pointing the knife toward her. Defendant LORI CUOMO further falsely stated that she managed to move her body away to avoid being struck by the knife. Defendants LORI CUOMO contacted the police who thereafter arrested Plaintiff, MARISOL LOPEZ, for various misdemeanor charges based on the aforementioned false representations of Defendants, LORI CUOMO.

19. That upon information and belief, the Plaintiff, MARISOL LOPEZ, was falsely accused of harassment, attempted assault, menacing, reckless endangerment, assault and criminal possession of a weapon, and arrested on said charges. It is further averred that the Plaintiff, MARISOL LOPEZ, was inside of her apartment cooking during the entirety of the aforesaid occurrence which could have easily been shown by video and other evidence at scene by police officers from NYPD 45th Precinct of THE NEW YORK CITY POLICE DEPARTMENT (“45th Precinct”).
20. That based on the above-referenced false allegations, on August 27, 2020, the Plaintiff, MARISOL LOPEZ, was wrongfully arrested and/or detained by officers of the 45th Precinct.
21. That the criminal charges filed against the Plaintiff, MARISOL LOPEZ, were and are patently false.
22. In connection with Plaintiff, MARISOL LOPEZ’s unlawful arrest, defendant officers intentionally filed out false and misleading reports, and forwarded these false reports to prosecutors in the Bronx County, District Attorney’s office in connection with Plaintiff MARISOL LOPEZ’s unlawful arrest, defendant’s intention to cause harm to the Plaintiff.
23. Throughout the prosecution, the Defendant, THE OFFICE OF THE DISTRICT ATTORNEY, BRONX COUNTY, had and/or attained exonerable evidence pertaining to

- the Plaintiff, but continued the prosecution knowing, based on the evidence, that there was no basis to move forward with the prosecution due to the lack of probable cause.
24. That throughout the prosecution of the Plaintiff, NATALE CORSI, individually and in his official capacity as an employee and/or attorney acting on behalf of THE OFFICE OF DISTRICT ATTORNEY, had and/or attained exonerable evidence pertaining to the Plaintiff, but continued the prosecution knowing, based on the evidence, that there was no basis to move forward with the prosecution due to the lack of probable cause.
25. That the acts complained of were carried out by the aforementioned individual Defendants, SUSAN ARIAS and DANG NYUGEN, in their capacities as POLICE OFFICERS, with all the actual and/or apparent authority attendant thereto.
26. That the forgoing false arrest of the Plaintiff, MARISOL LOPEZ, was committed due to the recklessness, carelessness, and negligent conduct of the Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, OFFICER SUSAN ARIAS and DANG NYUGEN, at the time of the events at issue in this lawsuit, who allowed and/or created the false allegation of Plaintiff made while the aforementioned officers were acting within the scope of their responsibilities for the Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
27. That the acts complained of were carried out by the aforementioned individual Defendants, OFFICER SUSAN ARIAS and OFFICER DANG NYUGEN, in their capacity as officers, agents, and/or employees of Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT with all the actual and/or apparent authority attendant thereto, pursuant to the customs, policies, usages, practices, procedures, and rules of THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK, and under the supervision of ranking officers of THE NEW YORK CITY POLICE

DEPARTMENT.

28. That on August 27, 2020, and at all times hereinafter mentioned, the Defendant, THE NEW YORK CITY POLICE DEPARTMENT, either personally or through its employees, agents, and/or servants, including Officer SUSAN ARIAS and DANG NYUGEN, was acting under color of state law, and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State or City of New York.
29. That the existence of customs, policies, usages, practices, procedures and rules of the Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, constituted a deliberate indifference to the safety, well-being, and constitutional rights of the Plaintiff.
30. That upon information and belief, on August 27, 2020, Defendant LORI CUOMO is and was a resident of the State of New York, County of Bronx.
31. That upon information and belief, the Defendant, WILCOX RESTORATION CORP., was and is a business corporation duly organized and existing under and by virtue of the laws of the State of New York.
32. That upon information and belief, and at all times hereinafter mentioned, the Defendant, WILCOX RESTORATION CORP., was and is the landlord and owner of the address 1007 Wilcox Avenue, Bronx, New York 10465,

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
UNCONSTITUTIONAL CUSTOMS AND POLICIES

33. At all times hereinafter mentioned, Plaintiff, MARISOL LOPEZ, repeats, reiterates and realleges each and every allegation set forth above numbered “1” through “32” with the same force and effect as if fully set forth herein.
34. That at all times hereinafter mentioned, the each and all of police officers and/or employees

of THE NEW YORK CITY POLICE DEPARTMENT, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of THE NEW YORK CITY POLICE DEPARTMENT and the State or City of New York.

35. That the Defendants, THE NEW YORK CITY POLICE DEPARTMENT, THE CITY OF NEW YORK, OFFICER SUSAN ARIAS and DANG NYUGEN, collectively and individually while acting under the color of state law, were directly and actively involved in violating the constitutional rights of the Plaintiff.

36. That the Defendants, THE NEW YORK CITY POLICE DEPARTMENT, THE CITY OF NEW YORK, OFFICER SUSAN ARIAS and DANG NYUGEN, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct.

37. That all of the foregoing acts by Defendants deprived Plaintiff of federally protected rights, including, but not limited to, the right:

- i. Not to be deprived of liberty without due process of law;
- ii. Not to have cruel and unusual punishment imposed upon him by police officers and
- iii. To receive equal protection under the law.

38. That as a result of the foregoing false arrest committed upon the Plaintiff, MARISOL LOPEZ, by the aforementioned police officers and/or other employees of the Defendants, THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK, this plaintiff sustained loss freedom, liberty, embarrassment, and mental anguish.

39. That the acts complained of were carried out by the aforementioned individual Defendant(s)

in their capacities as Police Officers, with all of the actual and/or apparent authority attendant thereto.

40. As a result of the foregoing, Plaintiff is entitled to compensatory damages in the sum exceeding the jurisdiction of all courts lower than the Supreme Court that would otherwise have jurisdiction on the first cause of action.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF

41. At all times hereinafter mentioned, Plaintiff, MARISOL LOPEZ, repeats, reiterates and realleges each and every allegation set forth above numbered “1” through “40” with the same force and effect as if fully set forth herein.
42. That the foregoing customs, policies, usages, practices, procedures, and rules of THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK were the direct and proximate cause of the constitutional violations suffered by the Plaintiff, as alleged herein.
43. That the existence of the aforementioned unconstitutional customs and policies may be inferred based on repeated occurrences of similar wrongful conduct, as documented and supported by numerous civil rights actions filed against THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK.
44. That the allegations made against the Plaintiff, MARISOL LOPEZ, were unsubstantiated and false, and the criminal case brought against her was dismissed on January 26, 2023.
45. That as a result of the foregoing, the Plaintiff, MARISOL LOPEZ, is entitled to compensatory damages in a sum exceeding the jurisdiction of all courts lower than the Supreme Court that would otherwise have jurisdiction on the second cause of action.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
CONSTITUTIONAL VIOLATIONS UNDER COLOR OF LAW

46. That at all times hereinafter mentioned, Plaintiff, MARISOL LOPEZ, repeats, reiterates and realleges each and every allegation set forth above numbered “1” through “45” with the same force and effect as if fully set forth herein.

47. That by reason of the foregoing and the negligence of the said Defendants, Plaintiff, MARISOL LOPEZ is informed and verily believes her aforesaid injuries are permanent and that she will permanently suffer from the effects of the aforesaid injuries; and that furthermore, plaintiff will be caused to suffer permanent embarrassment, emotional suffering and continuous physical and emotional pain as a result of the aforesaid injuries.

48. As a result of the foregoing, Plaintiff is entitled to compensatory damages in a sum exceeding the jurisdiction of all courts lower than the Supreme Court that would otherwise have jurisdiction on the third cause of action.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
CONSTITUTIONAL VIOLATIONS UNDER 42 U.S.C. §1983

49. At all times hereinafter mentioned, Plaintiff, MARISOL LOPEZ, repeats, reiterates and realleges each and every allegation set forth above numbered “1” through “48” with the same force and effect as if fully set forth herein.

50. That all of the aforementioned acts deprived Plaintiff, MARISOL LOPEZ of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

51. The acts complained of were carried out by the aforementioned individual Defendant(s) in their capacities as Police Officers, with all of the actual and/or apparent authority attendant

thereto.

52. As a result of the foregoing, Plaintiff is entitled to compensatory damages in a sum exceeding the jurisdiction of all courts lower than the Supreme Court on the fourth cause of action.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983**

53. That at all times hereinafter mentioned, Plaintiff, MARISOL LOPEZ, repeats, reiterates and realleges each and every allegation set forth above numbered “1” through “52” with the same force and effect as if fully set forth herein.
54. Defendants, OFFICER SUSAN ARIAS and DANG NYUGEN, CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, acted with intent to do harm to the Plaintiff, MARISOL LOPEZ without excuse or justification.
55. This is a result of the foregoing, Plaintiff experienced emotional distress, embarrassment, loss of liberty and freedom.
56. That as a result of the foregoing, Plaintiff is entitled to compensatory damages in a sum exceeding the jurisdiction of all courts lower than the Supreme Court on the fifth cause of action.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

57. At all times hereinafter mentioned, Plaintiff, MARISOL LOPEZ, repeats, reiterates and realleges each and every allegation set forth above numbered “1” through “56” with the same force and effect as if fully set forth herein.
58. Each and all of the Defendants misrepresented and falsified evidence before the District Attorney.
59. Each and all of the Defendants did not make a complete and full statement of facts to the

District Attorney.

60. Each and all of the Defendants withheld exculpatory evidence from the District Attorney.
61. Each and all of the Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff, MARISOL LOPEZ.
62. Each and all of the Defendants lacked probable cause to initiate criminal proceedings against Plaintiff, MAISOL LOPEZ.
63. Each and all of the Defendants acted with malice in initiating criminal proceedings against Plaintiff.
64. Each and all of the Defendants were directly and actively involved in the continuation of criminal proceedings against the Plaintiff, MARISOL LOPEZ, including THE OFFICE OF DISTRICT ATTORNEY, BRONX COUNTY, and NATALE CORSI, individual and in his capacity as Assistant District Attorney.
65. Each and all of the Defendants lacked probable cause to continue criminal proceedings against the Plaintiff MARISOL LOPEZ, including THE OFFICE OF DISTRICT ATTORNEY, BRONX COUNTY, and NATALE CORSI, individual and in his capacity as Assistant District Attorney.
66. Defendants acted with malice in continuing criminal proceedings against Plaintiff MARISOL LOPEZ.
67. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.
68. Notwithstanding the perjurious and fraudulent conduct of the Defendants, the criminal proceedings were terminated in Plaintiff MARISOL LOPEZ's favor on January 26, 2023, when all charges against her were dismissed.

69. That as a result of the foregoing, Plaintiff is entitled to compensatory damages in a sum exceeding the jurisdiction of all courts lower than the Supreme Court on the sixth cause of action.

AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
DENIAL OF CONSTITUTIONAL RIGHT TO A FAIR TRIAL
UNDER 42 U.S.C. § 1983 BASED ON FABRICATED EVIDENCE

70. At all times hereinafter mentioned, Plaintiff, MARISOL LOPEZ, repeats, reiterates and realleges each and every allegation set forth above numbered “1” through “69” with the same force and effect as if fully set forth herein.
71. Defendants created false evidence against Plaintiff, MARISOL LOPEZ.
72. Defendants forwarded false evidence and false information to prosecutors in the Bronx County District Attorney’s Office, which was known, or should have been known by employees of THE OFFICE OF DISTRICT ATTORNEY, BRONX COUNTY, including NATALE CORSI, individual and in his capacity as Assistant District Attorney.
73. In creating false evidence against Plaintiff MARISOL LOPEZ, in forwarding false evidence and information to prosecutors, and in providing false and misleading testimony, with the active and/or passive involvement of Defendants, THE OFFICE OF DISTRICT ATTORNEY, BRONX COUNTY, including NATALE CORSI, individual and in his capacity as Assistant District Attorney, the other defendants violated Plaintiff’s constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
74. As a result of the foregoing, Plaintiff’s liberty was restricted for an extended period of time, and she was put in fear for her safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

75. That as a result of the foregoing, Plaintiff is entitled to compensatory damages in a sum exceeding the jurisdiction of all courts lower than the Supreme Court on the seventh cause of action.

AS AND FOR AN EIGHTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
MALICIOUS ABUSE OF PROCESS UNDER 42 U.S.C. § 1983

76. At all times hereinafter mentioned, Plaintiff, MARISOL LOPEZ, repeats, reiterates and realleges each and every allegation set forth above numbered “1” through “75” with the same force and effect as if fully set forth herein.
77. The aforementioned individual defendants issued legal process to place Plaintiff MARISOL LOPEZ under arrest.
78. The aforementioned individual defendants arrested Plaintiff MARISOL LOPEZ in order to obtain a collateral objective outside the legitimate ends of the legal process.
79. The aforementioned individual defendants acted with intent to do harm to Plaintiff MARISOL LOPEZ, without excuse or justification.
80. As a result of the foregoing, Plaintiff MARISOL LOPEZ sustained, *inter alia*, deprivation of liberty, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of her constitutional rights.
81. That as a result of the foregoing, Plaintiff is entitled to compensatory damages in a sum exceeding the jurisdiction of all courts lower than the Supreme Court on the eighth cause of action.
82. The individual Defendants, including POLICE OFFICER SUSAN ARIAS, POLICE OFFICER DANG NYUGEN, POLICE OFFICERS “JOHN DOE” # 1-5, POLICE OFFICERS “JANE DOE” # 1-5, ASSISTANT DISTRICT ATTORNEY NATALE CORSI, LORI CUOMO, and/or other principals, agents, servants and employees of the

above-referenced corporate and/or municipal defendants, did wantonly, maliciously and intentionally commit the tort of abuse of process against the Plaintiff by causing the prosecution against the Plaintiff based on the knowingly false information provided by the Defendant, LORI CUOMO and other individual defendants.

83. The criminal prosecution of the Plaintiff resulted in a disposition favorable to Plaintiff. Contrarily, during the course of the prosecution against her of the existence of exculpatory evidence, and that the evidence was in fact fabricated – as supported by the evidence.
84. The aforesaid Defendants, acting in concert in bringing forth and causing the prosecution of the Plaintiff, even though said Defendants, including Defendant LORI CUOMO, knew that the charges against the Plaintiff were false, malicious, and completely contrary to the actual events that occurred on August 27, 2020.
85. That as a result of the foregoing, Plaintiff is entitled to compensatory damages in a sum exceeding the jurisdiction of all courts lower than the Supreme Court on the eighth cause of action.

AS AND FOR A NINTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF:
MUNICIPAL LIABILITY

86. At all times hereinafter mentioned, Plaintiff, MARISOL LOPEZ repeats, reiterates and realleges each and every allegation set forth above numbered “1” through “85” as if the same were more fully set forth at length herein.
87. The various individual Defendants, including OFFICER SUSAN ARIAS and DANG NYUGEN, as Police Officers and/or employees of the Defendants, THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK, assaulted and battered and violated the constitutional rights of the Plaintiff, MARISOL LOPEZ, notwithstanding their knowledge that their actions would jeopardize the Plaintiff’s well-being, safety and

constitutional rights.

88. The acts complained of were carried out by the aforementioned individual Defendants, OFFICER SUSAN ARIAS and DANG NYUGEN, in their capacity as Police Officers and/or employees of THE NEW YORK CITY POLICE DEPARTMENT and/or THE CITY OF NEW YORK, with all the actual and/or apparent authority attendant thereto.
89. The acts complained of were carried out by the aforementioned individual Defendants, OFFICER SUSAN ARIAS and DANG NYUGEN, in their capacity as Police Officers and/or employees of THE NEW YORK CITY POLICE DEPARTMENT and/or THE CITY OF NEW YORK, pursuant to the customs, policies, usages, practices, procedures, and rules of THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK all under the supervision of ranking officers of said agencies or departments.
90. The aforementioned customs, policies, usages, practices, procedures and rules of THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK include, but are not limited to, the following unconstitutional practices:
- (a) Arresting an innocent person notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing
 - (b) Subjecting an innocent person to arrest which fails to conform to fundamental standards of due process as recognized by this and other jurisdictions throughout the United States.
91. That the foregoing customs, policies, usages, practices, procedures and rules of THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK, were the direct and proximate cause of the constitutional violations suffered by Plaintiff, MARISOL LOPEZ as alleged herein.
92. The foregoing customs, policies, usages, practices, procedures and rules of THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK were the moving

force behind the constitutional violations suffered by the Plaintiff, MARISOL LOPEZ as alleged herein.

93. As a result of the foregoing, Plaintiff is entitled to compensatory damages in a sum exceeding the jurisdiction of all courts lower than the Supreme Court on the eighth cause of action.

AS AND FOR A NINTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
PENDENT STATE LAW CLAIMS

94. That at all times hereinafter mentioned, Plaintiff, MARISOL LOPEZ repeats, reiterates and realleges each and every allegation set forth above numbered "1" through "93" as if the same were more fully set forth at length herein.
95. The Plaintiff brings this pendent state law claim against Defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and OFFICER SUSAN ARIAS and DANG NYUGEN for arresting the Plaintiff, MARISOL LOPEZ or aiding and abetting in said actions.
96. That the foregoing attack, assault, battery and torture committed by the aforesaid Police Officers and/or employees of THE NEW YORK CITY POLICE DEPARTMENT and/or THE CITY OF NEW YORK against the Plaintiff occurred due to the Defendants' actual malice toward Plaintiff, MARISOL LOPEZ.
97. That Plaintiff, MARISOL LOPEZ, was harmed by being arrested. She suffered embarrassment, humiliation, as well as the loss of her good name among her peers.
98. As a result of the foregoing, Plaintiff is entitled to compensatory damages in the sum exceeding the jurisdiction of all courts lower than Supreme Court on the eighth cause of action.

AS AND FOR A TENTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
NEGLIGENT HIRING

99. That at all times hereinafter mentioned, Plaintiff, MARISOL LOPEZ repeats, reiterates and realleges each and every allegation set forth above numbered “1” through “98” as if more fully set forth at length herein.
100. That the Defendants, THE CITY OF NEW and THE NEW YORK CITY POLICE DEPARTMENT failed to exercise reasonable care and diligence in the selection and hiring of its agents, servants and employees, including but not limited to POLICE OFFICER SUSAN ARIAS, POLICE OFFICER DANG NYUGEN, POLICE OFFICERS “JOHN DOE” # 1-5 and POLICE OFFICERS “JANE DOE” # 1-5.
101. That the Defendant, THE OFFICE OF DISTRICT ATTORNEY, BRONX COUNTY, failed to exercise reasonable care and diligence in the selection and hiring of its agents, servants and employees, including but not limited to Assistant District Attorney NATALE CORSI.
102. That the Defendant, WILCOX RESTORATION CORP. failed to exercise reasonable care and diligence in the selection and hiring of its agents, servants and employees, including but not limited to LORI CUOMO.
103. That the above-mentioned Defendants failed to exercise reasonable care and diligence in the selection, screening, retention, engagement, employment, supervision and training of its agents, servants and employees.
104. That by reason of the foregoing, Plaintiff, MARISOL LOPEZ, was damaged in a sum exceeding the jurisdiction of all courts lower than the Supreme Court on the tenth cause of action.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR NEGLIGENT RETENTION
AND SUPERVISION**

105. That at all times hereinafter mentioned, Plaintiff, MARISOL LOPEZ repeats, reiterates and realleges each and every allegation set forth above numbered “1” through “104” as if more fully set forth at length herein.
106. That the Defendants, THE CITY OF NEW and THE NEW YORK CITY POLICE DEPARTMENT failed to exercise reasonable care and diligence in the retention and supervision of its agents, servants and employees, including but not limited to POLICE OFFICER SUSAN ARIAS, POLICE OFFICER DANG NYUGEN, POLICE OFFICERS “JOHN DOE” # 1-5 and POLICE OFFICERS “JANE DOE” # 1-5.
107. That the Defendant, THE OFFICE OF DISTRICT ATTORNEY, BRONX COUNTY, failed to exercise reasonable care and diligence in the in the retention and supervision of its agents, servants and employees, including but not limited to Assistant District Attorney NATALE CORSI.
108. That the Defendant, WILCOX RESTORATION CORP. failed to exercise reasonable care and diligence in the in the retention and supervision of its agents, servants and employees, including but not limited to LORI CUOMO.
109. That the above-mentioned Defendants failed to exercise reasonable care and diligence in the selection, screening, retention, engagement, employment, supervision and training of its agents, servants and employees.
110. That by reason of the foregoing, Plaintiff, MARISOL LOPEZ, was damaged in a sum exceeding the jurisdiction of all courts lower than the Supreme Court on the tenth cause of action.

WHEREFORE, the Plaintiff, MARISOL LOPEZ, demands judgment in a sum exceeding the

jurisdiction of all courts lower than the Supreme Court that would otherwise have jurisdiction on the first, second, third, fourth, fifth, sixth, seventh, eighth, ninth, tenth and eleventh causes of action, in addition to punitive damages, plus attorney's fees, costs, and disbursements of this action.

DATED: Brooklyn, New York
April 5, 2023

Yours, etc.,



BY: Ezra B. Glaser
EZRA B. GLASER AND ASSOCIATES
Attorneys for the Plaintiff
MARISOL LOPEZ
3021 Fort Hamilton Parkway, Suite 1R
Brooklyn, New York 11218
Phone: (212) 385-9300

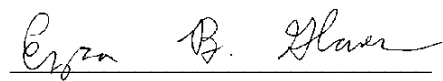
ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) ss:
COUNTY OF KINGS)

I, EZRA B. GLASER, of EZRA B. GLASER AND ASSOCIATES, the undersigned, an attorney admitted to practice law in the Courts of the State of New York, with offices at 3021 Fort Hamilton Parkway, Brooklyn, New York, do state the following under the penalties of perjury:

That I am the attorney for the plaintiff in the within action; that I have read the foregoing VERIFIED COMPLAINT and know the contents thereof; that the same is true to my own knowledge, except as to those matters that I believe to be true. The reason this verification is being made by me and not by my client is that my client is not presently within the county wherein I maintain my offices and does not reside in the county wherein I maintain my offices. The grounds of my belief as to all matters are stated upon my own knowledge based on the investigative materials in my file and the investigation conducted by my office.

Dated: New York, New York
April 5, 2023



Ezra B. Glaser, Esq.

Index #: _____/2023

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**-----X
MARISOL LOPEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT (“NYPD”), POLICE OFFICER SUSAN ARIAS, POLICE OFFICER DANG NYUGEN, POLICE OFFICERS “JOHN DOE” # 1-5, individually and in Their Official Capacities (the name John Doe being fictitious, as their true names are presently unknown), POLICE OFFICERS “JANE DOE” # 1-5, individually and in their Official Capacities (the name Jane Doe being fictitious, as their true names are presently unknown), THE OFFICE OF DISTRICT ATTORNEY, BRONX COUNTY, Assistant District Attorney NATALE CORSI, individually and in his official capacity as an employee and/or attorney acting on behalf of THE OFFICE OF DISTRICT ATTORNEY, BRONX COUNTY, WILCOX RESTORATION CORP. and LORI CUOMO, both individually and in her official capacity on behalf of WILCOX RESTORATION CORP.,

Defendant(s).

-----X
SUMMONS AND COMPLAINT-----X
EZRA B. GLASER AND ASSOCIATES

Attorneys for the Plaintiff

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